



File No.: EXP202313215

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 3, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in the procedure for the exercise of rights of file number EXP202102029, followed against UNIÓN DE RADIOS LIBRES Y COMUNITARIAS DE MADRID (hereinafter, the respondent).

In this file, it is recorded that the complainant exercised their right to erasure of personal data concerning them, without said request being duly addressed, issuing a resolution requiring the following:

“FIRST: TO GRANT the complaint made by A.A.A. and to urge UNIÓN DE RADIOS LIBRES Y COMUNITARIAS DE MADRID, with NIF G81420093, to, within ten working days following the notification of this resolution, send to the complainant a certification addressing the exercised right of Erasure or to deny it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.”

SECOND: The resolution of the procedure for the exercise of rights, in which the respondent was granted a period of ten working days to address the exercise of the right to erasure, was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, not being collected by the responsible party within the availability period, as recorded in the acknowledgment of receipt in the file, and therefore understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on January 14, 2022.

THIRD: After the period granted for the required actions in said resolution had elapsed and having received a letter from the complainant, registered on January 25, 2022, with registration number O00007128e2200003129, requesting compliance, on February 14, 2022, and with outgoing registration number O00007128s2200009747, a requirement was sent to the respondent to, within five working days, send to the complainant a certification of compliance with the indicated resolution and, within ten working days, notify this Agency of the measures adopted.

The notification of said requirement was not collected by the responsible party within the availability period, being understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on February 25, 2022, as recorded in the acknowledgment of receipt in the file.

FOURTH: On May 23, 2023, and with incoming registration number REGAGE23e00032849009, a letter was received from the Ombudsman requesting information related to file EXP202102029.

FIFTH: Not having any record of the respondent receiving the notification of the resolution of the exercise of rights procedure, it was again sent by postal means, being returned to this Agency on June 9, 2023, after two delivery attempts in which the respondent was absent during delivery and the notification was not collected at the post office, as recorded in the acknowledgment of receipt in the file.

The aforementioned resolution was also notified to the respondent by means of an announcement published in the Official State Gazette dated July 28, 2023.

SIXTH: On June 19, 2023, and with outgoing registration number REGAGE23s00039663452, the respondent was again required to, within five working days, send to the complainant a certification of compliance with the resolution and, within ten working days, notify this Agency of the measures adopted.

The electronic notification of said requirement was not collected by the responsible party within the availability period, being understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on June 30, 2023, as recorded in the acknowledgment of receipt in the

file.

SEVENTH: After the period of the initial resolution and the successive requirements had elapsed, the respondent has not sent a response to this Agency that certifies that they have addressed the exercised right of erasure or that they have denied it with justification indicating the reasons why the request cannot be granted.

EIGHTH: No ordinary administrative appeal can be made against the aforementioned resolution due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

NINTH: On October 3, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

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After two unsuccessful attempts to deliver the postal notification of the initiation agreement at the tax address of the respondent, in accordance with the provisions of Article 44 of the LPACAP, the notification was made by means of an announcement published in the Official State Gazette dated November 3, 2023.

TENTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case to be a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: The resolution of the procedure for the exercise of rights and the requirements for compliance with it indicated in the first, third, and sixth antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and enforceable due to the expiration of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The respondent has not submitted any response to this Agency that proves compliance with the resolution.

THIRD: The initiation agreement of this sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated November 3, 2023, after two unsuccessful delivery attempts at their tax address.

FOURTH: The respondent has not presented any allegations against the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

In accordance with the evidence available, it is considered that the respondent has breached the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to the respondent for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period;"

III

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher."

For the purposes of the limitation period for infringements, the infringement attributed is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which classifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

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IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and deterrent, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating factors apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR as classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”.

It is warned that failure to comply with the order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on UNIÓN DE RADIOS LIBRES Y COMUNITARIAS DE MADRID, with NIF G81420093, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO ORDER UNIÓN DE RADIOS LIBRES Y COMUNITARIAS DE MADRID, with NIF G81420093, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, to send to the complainant a certification addressing the exercised right of Erasure or to deny it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202102029. Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

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THIRD: NOTIFY this resolution to the UNION OF FREE AND COMMUNITY RADIOS OF MADRID.

FOURTH: This resolution will be enforceable once the deadline for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in

accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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